

23STCV02226 23STCV02226

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-27

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Case Number: 23STCV02226 Hearing Date: July 27, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

GEORGE

IXTA,

Plaintiff,

vs.

JIM

KELLEY, et al.

Defendants.

Case No.:

23STCV02226

Hearing

Date:

July 27,

2026

ORDER
GRANTING MOTION FOR DETERMINATION OF
GOOD FAITH SETTLEMENT

I. BACKGROUND

While

Plaintiff George Ixta ("Ixta") was delivering a package, two dogs owned by Defendant James Kelley ("Kelley") allegedly attacked Ixta. In a separate incident about two months later, Defendant Kai Yip Wong ("Wong") allegedly injured Ixta via negligent operation of a motor vehicle. Ixta sued Defendants for liability under Civil Code section 3342 and negligence.

Pursuant to the Cross-Complaint filed on March 3, 2025, Wong sued Kelley for indemnity, apportionment of fault, comparative fault, and declaratory relief.

On April 13, 2026, Wong filed the instant motion for determination of good faith settlement. Kelley filed an opposition. Wong filed a reply.

II. LEGAL STANDARD

California Code of Civil Procedure section 877.6, subdivision (a)(2)[1], states that "a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. The application shall indicate the settling parties, and the basis, terms, and amount of the settlement. The notice, application, and proposed order shall be given by certified mail, return receipt requested, or by personal service. Proof of service shall be filed with the court. Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a nonsettling party may file a notice of motion to contest the good faith of the settlement. If none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement. The notice by a nonsettling party shall be given in the manner provided in subdivision (b) of Section 1005. However, this paragraph shall not

apply to settlements in which a confidentiality agreement has been entered into regarding the case or the terms of the settlement.” The statute further clarifies that the party asserting the lack of good faith shall have the burden of proof on that issue.[2] (§ 877.6, subd. (d).)

Section

877 provides: “[w]here a release, dismissal with or without prejudice, or a covenant not to sue or not to enforce judgment is given in good faith before verdict or judgment to one or more of a number of tortfeasors claimed to be liable for the same tort, or to one or more other co-obligors mutually subject to contribution rights, it shall have the following effect: (a) It shall not discharge any other such party from liability unless its terms so provide, but it shall reduce the claims against the others in the amount stipulated by the release, the dismissal or the covenant, or in the amount of the consideration paid for it, whichever is the greater. (b) It shall discharge the party to whom it is given from all liability for any contribution to any other parties.”

In

Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499, the California Supreme Court identified the following nonexclusive factors courts are to consider in determining if a settlement is in good faith under section 877.6: “a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.”

III. DISCUSSION

Wong requests the Court finds the settlement entered into between Ixta and Wong in the amount of \$122,000.00 was entered into in good faith and dismiss any and all pending claims filed against Wong in this action, as well as all actual or potential claims against Wong, for equitable causes of action arising out of the subject matter of this action.

When determining if a settlement is in good faith pursuant to section 877.6, the Court reviews the nonexclusive factors outlined in Tech-Bilt,

Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499. These factors include: 1) the plaintiff's total recovery in comparison to the settlor's proportionate liability; 2) the amount paid in settlement; 3) the allocation of settlement proceeds among plaintiffs (if there are multiple); 4) a recognition that a settlor should pay less in settlement than if found liable at trial; 5) financial conditions and insurance policy limits of the settlor; and 6) collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants. (Ibid.) The evaluation of whether a settlement was made in good faith is required to "be made on the basis of information available at the time of settlement." (Ibid.)

A. Recovery,
Proportionate Liability, and Amount Paid in Settlement

Wong and Ixta settled this claim in early May 2025, with Wong agreeing to pay Ixta \$112,500.00, in return for Ixta dismissing, with prejudice, and releasing Wong from all future claims related to this matter. (Mot., Parseghian Decl. ¶ 5.) Ixta alleges he sustained injuries from two distinct incidents: a dog bite from Kelley's dogs, and, approximately two months later, a car accident due to Wong's negligent driving.

In response to Form Interrogatory No. 6.2 "Identify each injury you attribute to the INCIDENT and the area of your body affected," Ixta stated: "[s]tress, anxiety, sleep deprivation, headaches, neck, shoulders, L arms, L wrist, L hand, [b]urn mark on left arm, [u]pper back, lower back, hip pain, left leg." (Mot., Parseghian Decl. ¶ 4, Ex. B.) He specifically stated he did not have pre-existing injuries to the areas injured in this incident. (Ibid.) Ixta's form interrogatories outline \$31,288.80 in medical expenses attributed to Wong's negligence. (Ibid.)

In contrast, Ixta alleges, as a result from the Kelley incident, he suffered from "injuries on both legs, both thighs, in multiple locations, [p]ain in the left knee, [b]ack pain, pain in the left hip, pain in the mid back, pain the neck, anterior cruciate ligament sprain and tear, torn ACL, torn PLC, left knee anterior cruciate ligament, posterior cruciate ligament tear." (Id. at Ex. C.) Ixta's form interrogatories outline \$283,923.84 in expenses attributed to the Kelley incident, with over \$150,000.00 being attributed to ACL surgery. (Ibid.)

Wong and Ixta settled for \$112,500.00, based upon facts indicating that Wong was only liable for certain injuries resulting in approximately \$31,288.80 in medical expenses.

Kelley argues that this amount seems “out of the ballpark,” of Wong’s proportionate liability, and therefore cannot be found to be offered in good faith, as it 1) relies on an incomplete account of Wong’s potential recovery against Kelley for actions attributed to Wong; and 2) does not address emotional distress, loss of earnings, future treatment, and pain and suffering.

As noted previously, the Court evaluates settlements within the context of information available at the time of settlement. (See *Tech-Bilt, Inc.*, supra, 38 Cal.3d at 499.) Parties are not obligated to go above and beyond to research potential liability of other parties or damages not claimed by a plaintiff; this would dissuade parties from entering into swift settlements.

Kelley argues Ixta seeks \$300,000 in past medical damages, \$125,000 in future medical damages, and lost earnings exceeding \$336,00.00, but provides no information as to when Ixta first outlined these damages. (Opp., Ramakrishnan Decl. ¶ 14.) Absent information as to when Ixta made these requests, there is no indication Wong was aware of these requests at the time of settlement. Pursuant to section 877.6, subdivision (d), the party asserting a lack of good faith has the burden of proof—Kelley has offered no evidence demonstrating knowledge of this at the time of settlement and thus has not demonstrated lack of good faith.

As outlined in Civil Code section 1431.2, subdivision (a), in any action for personal injury, the liability of each defendant for non-economic damages is several and not joint. Kelley will not bear the burden for any non-economic damages not stemming from Kelley’s contribution.

Comparing Ixta’s claimed medical costs for each incident to the settlement amounts is proportional. For the Wong incident, Ixta’s interrogatory responses indicate approximately \$31,288.80 in medical expenses. The Wong settlement is \$112,500.00, which is approximately four times the medical expenses. For the Kelley incident, Ixta’s interrogatory responses indicate approximately \$283,943.84 in medical expenses. Ixta’s settlement demand to Kelley of \$1,299,999.98 is approximately five times the medical

expenses. Considering Ixta's expert apportioned liability at 70-30, with the lower amount attributed to Wong (Opp., Ramakrishnan Decl. ¶ 9, Ex. 1.),[3] these facts do not show a lack of proportionality.

Based upon all the evidence, this factor supports the finding that the settlement was made in good faith.

B. Allocation of Settlement

This factor is irrelevant in this case as Ixta is the only identified plaintiff in this action. There is no indication any party other than Ixta is receiving a portion of this settlement.

C. Financial Considerations

On the date of the subject incident between Ixta and Wong, Wong has only one insurance policy in effect providing coverage for injuries stemming from the subject accident. Wong's insurance policy provides coverage of \$300,000.00 per person/\$500,000.00 per accident. (Mot., Parseghian Decl. ¶ 3, Ex. A.) The amount paid in settlement represents approximately half of that available for payment to any one individual involved in an accident.

The Court does not find this factor cuts either way, as the facts do not demonstrate Ixta and Wong entered into a disproportionately low settlement based upon the facts available at the time of settlement.

D. Collusion or Fraud

There is no evidence to suggest collusion, fraud, or tortious conduct aimed to injure the rights of non-settling parties. Settlement was reached via arms-length negotiation between counsel via a mediator. (Id. at ¶ 5.) Kelley does not put fraud at issue.

V. CONCLUSION

The Court finds Kelley has failed to show a lack of good faith. Defendant Kai Yip Wong's motion for determination of good faith settlement is GRANTED.

The

Court dismisses all pending and future claims against Wong by the parties represented by counsel served with this motion (to the extent those claims arise from the facts giving rise to this case), including cross-complaints for equitable indemnity.

Wong is ordered to give notice.

DATED:

July 27, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.

[2] Pursuant

to the procedure specified in § 877.6, the Court interprets Wong's "motion" as an "application for determination of good faith settlement" and Kelley's "opposition" as a "motion to contest the good faith of the settlement."

[3] Although Kelley argues his expert

"places even greater liability on [Wong]," Kelley provides no evidence or figures for alternate calculation. (Opp., p. 6:14.)